THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH
(through web-based video conferencing platform)

Item No.7
CP (CAA) No.58/Chd/Hry/2022
(2nd Motion)

Under Section 230-232 and 234 of the Companies Act, 2013 read with Companies (Compromise, Arrangements and Amalgamation) Rules, 2016, Foreign Exchange Management (Cross Border Merger) Regulations, 2018 and other relevant provisions

In the matter of:-

Bibby Financial Services (India) Pvt. Ltd.
with its registered office at
B-583, Sushant Lok, Phase-I,
Near Park Plaza, Gurugram, Haryana - 122009
PAN : AADCB0254B
CIN: U65921HR2006PTC038291
….Petitioner Company/Transferor Company

AND

Bibby FS (Holdings) Limited
with its registered office at
3rd Floor, Walker House, Exchange
Flags, Liverpool L2 3YL, England.
COMPANY NO.3143108
….Non-Petitioner Company/Transferee Company

Present through Video Conferencing:
Mr. Pradeep Nauharia, Advocate for the petitioner

This is a joint second motion company petition filed by the Petitioner-Companies, namely; **Bibby Financial Services (India) Pvt. Ltd.** (Petitioner Company/Transferor Company) and **Bibby FS (Holdings) Limited** (Non-Petitioner Company/Transferee Company) under Sections 230-232 of Companies Act, 2013 (the Act) and other applicable provisions of the Act read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

2. In its petition, the petitioner companies have prayed inter alia to issue directions in relation to publication in press and notices to be issued to the authorities concerned in relation to date of hearing of the petition and calling for objections.

3. The first motion application seeking directions for dispensing with the requirement for convening the meeting of the Equity Shareholders, Preference Shareholders and Creditors of the Applicant Company was filed before this Tribunal vide Company Application No.CA (CAA) No.54/Chd/Hry/2021 and based on such application necessary directions were issued on 13.07.2022. In the order dated 13.07.2022, the meetings of equity shareholders, preference shareholders, debenture holders, secured and unsecured creditors of the Applicant Company was dispensed with for the reasons mentioned in the aforesaid order.

4. The notice of hearing will be advertised in “Financial Express” (English) and “Jansatta” (Hindi), both Haryana Edition not less than 10 days before the next date fixed for hearing.

5. In addition to the above public notice, the Petitioner Company shall serve the notice of the petition on the following Authorities namely, a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; New Delhi; (b) concerned Registrar of Companies, (c) the Official Liquidator; and (d) Jurisdictional Income Tax Authorities through the Nodal Officer-Principal Commissioner of Income Tax, NWR, Aayakar Bhawan, Sector 17-E, Chandigarh by mentioning the PAN of the Company along with a copy of this petition by speed post immediately. As the Petitioner Company has undertaken a Cross Border a transaction in terms of Regulation 9(1) of Foreign Exchange Management (Cross Border Merger) Regulations, 2018, it is deemed

to have prior approval Reserve Bank of India. Hence, no notice to Reserve Bank of India to be issued in this case.

6. The petitioner-company shall at least 7 days before the date of hearing of the petition file an affidavit of service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner company shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

7. The next date of hearing of the petition shall be on 11.11.2022 for the consideration of the approval of the scheme as contemplated between the petitioner companies.

8. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

Sd/-
(Subrata Kumar Dash)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

August 25, 2022
AV